

Court No. - 29

Case :- WRIT - C No. - 29244 of 2024

Petitioner :- Kiran

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Dinesh Rai

Counsel for Respondent :- C.S.C.,Jai Krishna Upadhyay

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard Sri Dinesh Rai, learned counsel for the petitioner; learned Standing Counsel for the State respondent no.1 and Sri Jai Krishna Upadhyay, learned counsel for respondent nos.2 to 4-Electricity Department.

2. The instant writ petition is preferred seeking following principal reliefs:-

"A. Issue a writ, order or direction in the nature of mandamus directing the respondents to grant new electricity connection to the petitioner in House No.290, Patel Nagar, Konch, District Jalaun in which the petitioner is residing since 2013 alongwith her husband and children, in the interest of justice.

B. Issue a writ, order or direction in the nature of mandamus directing the respondents to decide the representation dated 23.07.2024 of petitioner within a reasonable time as fixed by this Hon'ble Court."

3. Learned counsel for the petitioner submits that the petitioner alongwith her husband and children is living in premises bearing No.290, Patel Nagar, Konch, District Jalaun, which is in the name of her father-in-law namely Sri Rameshwar Prasad Soni, who died on 26.02.2024. After death of her father-in-law, she has moved an application on 16.07.2024 for new electricity connection in the premises in her name but till date the electricity connection has not been provided.

4. Learned counsel for Electricity Department fairly states that in case the petitioner moves an application as per Annexure 4.2 of Clause 4.4. of the U.P. Electricity Supply Code 2005 and furnishes requisite indemnity bond, the respondent-Electricity Department will take a decision after hearing the parties in respect of sanction of electricity connection at the earliest.

5. No useful purpose would be served in keeping the writ petition pending consideration.

6. Considering the facts and circumstances of the case, the writ petition is disposed of asking the petitioner to move an appropriate application as per Annexure 4.2 of Clause 4.4. of Electricity Supply Code 2005 before the respondent-Electricity Department seeking a new electricity connection within ten days from today. In case any such application is moved, we hope and trust that the respondent-Electricity Department would proceed to consider the same in accordance with law and take appropriate decision expeditiously but certainly after hearing the parties having stake in the matter.

Order Date :- 25.9.2024

RKP